

the inquiry as to whether or not the woman is pregnant shall proceed without him; and

- (b) where there is no trial jury, or where a jury have disagreed as to whether the woman is or is not pregnant, or have been discharged by the court without giving a verdict on that question, the jury shall be constituted as if to try whether or not she was fit to plead, and shall be sworn in such manner as the court may direct.

(3) The question whether the woman is pregnant or not shall be determined by the jury on such evidence as may be laid before them either on the part of the woman or on the part of the Crown, and the jury shall find that the woman is not pregnant unless it is proved affirmatively to their satisfaction that she is pregnant.

(4) Where on proceedings under this section the jury find that the woman in question is not pregnant, the woman may appeal under the Criminal Appeal Act, 1907, to the Court of Criminal Appeal, and that Court, if satisfied that for any reason the finding should be set aside, shall quash the sentence passed on her and instead thereof pass on her a sentence of penal servitude for life.

7 Edw. 7.
c. 23.

(5) The rights conferred by this section on a woman convicted of an offence punishable with death shall be in substitution for the right of such a woman to allege in stay of execution that she is quick with child and the last-mentioned right shall cease as from the commencement of this Act.

3.—(1) This Act may be cited as the Sentence of Death (Expectant Mothers) Act, 1931.

Short title
and extent.

(2) This Act shall not apply to Scotland or Northern Ireland.

CHAPTER 25.

An Act to raise to one hundred and fifteen million pounds the limit on the amount of the advances by the Treasury to the Unemployment Fund which may be outstanding during the deficiency period, to amend subsection (2) of section

fourteen of the Unemployment Insurance Act, 1927, by further extending to forty-eight months the period of twelve months therein mentioned, and to make provision for certain other matters in connection with the extension aforesaid.

[8th July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase of
limit of
Treasury
advances.
11 & 12
Geo. 5, c. 1.

1. The limit on the amount of the advances to be made by the Treasury to the Unemployment Fund under section five of the Unemployment Insurance Act, 1921, as amended by subsequent enactments, which may be outstanding during the deficiency period, shall be raised to one hundred and fifteen million pounds.

Further
amendment
of s. 14 (2)
of 17 & 18
Geo. 5, c. 30.
19 & 20
Geo. 5, c. 19.
20 & 21
Geo. 5, c. 16.

2.—(1) The period of twelve months mentioned in subsection (2) of section fourteen of the Unemployment Insurance Act, 1927, which was extended by the Unemployment Insurance (Transitional Provisions) Amendment Act, 1929, to twenty-four months, by the Unemployment Insurance Act, 1930, to thirty-six months, and by the Unemployment Insurance Act, 1931, to forty-two months, shall be further extended to forty-eight months and the said subsection shall have effect accordingly.

(2) There shall be paid into the unemployment fund out of moneys provided by Parliament—

(a) such amounts as may be determined by the Minister of Labour, with the concurrence of the Treasury, to be approximately equivalent to the aggregate amount of the sums which are from time to time paid by way of benefit under the said subsection (2) as extended by this section; and

(b) an amount approximately equivalent to the expenses incurred by the Minister of Labour in administering the benefit aforesaid.

(3) The amounts paid into the unemployment fund under subsection (2) of this section shall not be treated

as receipts paid into that fund within the meaning of the proviso to subsection (3) of section twelve of the Unemployment Insurance Act, 1920, and the maximum sum applicable under the said proviso as an appropriation in aid shall be increased by a sum equal to the amount paid into the unemployment fund under paragraph (b) of the said subsection (2).

10 & 11
Geo. 5. c. 39

3.—(1) This Act may be cited as the Unemployment Insurance (No. 2) Act, 1931, and this Act shall be included among the Acts which may be cited together as the Unemployment Insurance Acts, 1920 to 1931.

Short title
and extent

(2) This Act shall not extend to Northern Ireland.

CHAPTER 26.

An Act to authorise the Treasury to guarantee a loan to be raised by the Government of Mauritius, and the making of advances out of moneys provided by Parliament for the payment of the annual charges in respect of the loan for a limited period. [8th July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Treasury may, subject to the provisions of this Act, guarantee in such manner and on such conditions as they think fit the payment of the principal of and the interest on any loan raised by the Government of Mauritius for the purposes set out in the Schedule to this Act :

Guarantee
of Mauritius
loan.

Provided that the amount of the principal of the loan to be guaranteed under this Act shall not exceed an amount sufficient to raise seven hundred and fifty thousand pounds.